# MASTER STRATEGIC CONTEXT & AI SECOND-OPINION REVIEW DOSSIER

## DB 손해보험 5,000 만원 가지급금 청구 사건 총괄 배경·법리 구조 및 타 인공지능(AI) 검토용 종합 브리프

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**Purpose:** Comprehensive Single Source of Truth (SSOT) explaining the entire factual chronology, legal doctrines, statutory calculations, and strategic intentions behind the Bangladesh Direct Filing package.

**Intended Use:** Can be fed directly into any advanced AI model (Claude 3.5 Sonnet, GPT-4o, Gemini 1.5 Pro, Legal AI Agents) for adversarial cross-examination, risk auditing, and strategy refinement.

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## SECTION 1: INSTRUCTIONS FOR AI REVIEWERS (타 AI 모델 검토 가이드)

> *### 🤖 PROMPT TEMPLATE TO PASTE INTO CLAUDE / CHATGPT / GEMINI:*
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>
> *You are a Senior Cross-Border Insurance Litigation Partner and Korean Commercial Law Specialist.*
>
> *Review the following comprehensive case dossier and strategic filings prepared by the legal team*
>
> *representing the surviving parents in Bangladesh of deceased foreign student MAHADI MONOAR HOSSAIN.*
>
> *The immediate operational goal is to recover the KRW 50,000,000 (50M KRW) provisional advance payment*

> *(상법 제 732 조의 2 가지급보험금) from DB Insurance Co., Ltd. under Policy No. 2-2026-0531750-000.*
>
> *Please conduct an adversarial legal review addressing:*
>
> *1. Statutory robustness of the Commercial Code §732-2 provisional payment demand.*
>
> *2. Enforceability of Supreme Court En Banc Decision 98Da48963 against unlicensed driving exclusions.*
>
> *3. Validity of the Bangladesh Sunni Hanafi heirship apportionment (Father 2/3, Mother 1/3) under Private International Law Art. 49.*
>
> *4. Effectiveness of Special Power of Attorney Clause 6 authorizing wire transfer to Mutual Trust Bank PLC.*
>
> *5. Any potential procedural vulnerabilities or tactics DB Insurance might deploy to delay payment past Day 10.*
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## SECTION 2: THE COMPLETE FACTUAL PICTURE (사건의 전체적 사실관계)

### 2.1 The Deceased Student & Incident Profile

*Name of Deceased:** MAHADI MONOAR HOSSAIN (마하디 모노아르 후세인 / Passport: `MONOAR HOSSAIN MAHADI`)

*Alien Registration No (ARC):** `010530-7660021` (DOB: May 30, 2001 / Age 24 / Single / Male)

*Passport No.** `A03097931` (Personal ID: `7362790417`)

*Visa Status:** D-2 Student Visa (춘천출입국·외국인사무소 속초출장소)

*University:** Seojeong University (서정대학교 스마트자동차과 1 학년 / Student ID: `202581042`)

*Incident Date & Time:** March 14, 2026 at approximately 05:58 AM KST

*Incident Location:** Public Highway at Bukbun-ri 4-1, Hyeonnam-myeon, Yangyang-gun, Gangwon State (7 번 국도)

*Accident Mechanics:* Single-vehicle collision; the car went off the road and collided with a roadside guardrail.

*Investigating Police:* Gangwon Sokcho Police Station Traffic Accident Investigation Unit (Case No: `2026-00020`, Lt. Jo Hyeong-cheol).

*Forensic & Medical Findings:* GangNeung Asan Hospital Dr. Huidong Kang certified cause of death as severe traumatic brain injury (TBI), skull fracture, and extensive brainstem damage.

**2.2 The Target Automobile Insurance Contract**

*Insurer:* DB Insurance Co., Ltd. (DB 손해보험주식회사 / CEO Jeong Jong-pyo)

*Official Policy Number:* `2-2026-0531750-000`

*Product Name:* 프로미카개인용(베이직형)자동차보험 (Promy Car Basic Auto Policy)

*Subject Vehicle:* 2012 올뉴모닝 (Plate: `28 모 1390` / Chassis VIN: `KNABE511BCT380523`)

*Policy Period:* 2026 년 01 월 21 일 ~ 2026 년 04 월 21 일 (Active 52 days prior to and during the crash)

*Premium Paid:* KRW 317,600 (일시납 완납)

*Managing Branch & Agent: DB Insurance Gangneung Business Dept / Gangneung Sokcho Branch, Agent 이덕만 (Lee Deok-man, Direct Tel: `010-5379-6099` / Customer Desk: `1588-0100`)*.

**2.3 The Surviving Heirs & Representation**

*Father (부):* BELAL HOSSAIN (NID: `7802539200` / Passport: `A08912455`) — 2/3 Statutory Share (66.667%)

*Mother (모):* MONOARA BEGUM (NID: `2354437788` / Passport: `A09234112`) — 1/3 Statutory Share (33.333%)

*Address in Bangladesh:* Munshi Bari, Keshobpur, Monoharganj - 3571, Cumilla, Bangladesh

*Authorized Attorney-in-Fact:* HASIBUL MUNIM (주한 방글라데시 인권위원회 위원장 / NID: `6003330534` / Passport: `B00936349`)

*Contacts:* BD: `+880-1941-646278` | KR/Kakao: `010-7209-1620` | Email: `munimm247@gmail.com`

*Designated Account:* Mutual Trust Bank PLC, Dhanmondi Branch, Dhaka (SWIFT: `MTBLBDDH`, A/C: `1311004072276`, Routing: `145261188`)

## SECTION 3: CORE LEGAL DOCTRINES & INTENTIONS BEHIND EVERY FILING

### 3.1 Why the 50M KRW Provisional Advance is Legally Mandatory (상법 제 732 조의 2)

*Statutory Requirement: Under Korean Commercial Code Article 732-2 and Standard Automobile Policy Article 34(3), when an insurance claim is filed and the fact of the insured's accidental death is established (via Police and Hospital records), the insurer MUST** advance at least 50% of the estimated insurance benefit (추정보험금의 50% = KRW 50,000,000) within 10 business days, even if their internal claims investigation is ongoing.

*Our Intention:** By anchoring our first demand strictly on the 50M KRW statutory provisional payment, we strip DB Insurance of any lawful pretext for delay. If DB fails to disburse within 10 days, they enter immediate commercial default under Commercial Code §54.

### 3.2 Preempting the Unlicensed Driving Exclusion (대법원 98 다 48963 전원합의체)

*Anticipated Defense:** DB Insurance adjusters routinely attempt to deny auto accident claims involving unlicensed driving (무면허운전) by citing standard policy exclusion clauses.

*Our Preemptive Invalidation:*

1. **Commercial Code Article 732-2 (상법 제 732 조의 2):** In personal accident / death insurance, an insurer cannot be exempted from liability for death caused by the gross negligence (중대한 과실) of the insured. Unlicensed driving is legally classified as gross negligence, NOT intentional suicide.
2. **Commercial Code Article 663 (상법 제 663 조 - 불이익변경금지원칙):** Any policy term or contractual exclusion that is more disadvantageous to the policyholder/insured than statutory provisions is strictly **NULL AND VOID**.
3. **Supreme Court En Banc Decision 98Da48963 (대법원 98 다 48963 전원합의체 판결):** The Supreme Court En Banc held that policy terms exempting an insurer from death benefit liability on the sole ground of unlicensed driving violate Commercial Code Article 732-2 and Article 663, and are therefore **ABSOLUTELY VOID**.

**3.3 Confirmation of Foreign Succession Law (국제사법 제 49 조)**

*Governing Rule:* Article 49(1) of the Korean Private International Law mandates that inheritance is governed by the national law of the deceased at the time of death.

*Bangladeshi Sunni Hanafi Succession:*

- Father receives 2/3 share as *Asabah* (Residuary heir).
- Mother receives 1/3 fixed Quranic share (*Zawil Furud*).
- All other relatives are completely excluded (*Mahjub*).

*Original Inherent Property Doctrine: Under Supreme Court Decisions 2003Da29463 and 2000Da31502, accidental death insurance proceeds do not form part of the deceased's probate estate subject to general creditors; they vest directly and originally in the statutory heirs as their separate inherent property (*상속인의 고유재산*).*

**3.4 Wire Remittance & Tax-Exempt Protection**

*Special Mandate Clause 6:* Gives Hasibul Munim explicit legal authority under Korean Civil Act §118 to receive wire proceeds on behalf of the heirs and issue a legally binding discharge to the insurer.

*Korean Income Tax Act §12(3)(d):* Statutory death benefits and compensatory insurance payments are 100% exempt from Korean withholding taxes.

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## SECTION 4: ADVERSARIAL COUNTER-MEASURE PLAYBOOK

| INSURER TACTICS & REBUTTAL PLAYBOOK | |
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| Insurer Delay / Defense Tactic | Our Preemptive Rebuttal & Action Trigger |
| 1. "We need 30 days to investigate the crash." | Cite Commercial Code §732-2: Provisional 50% advance must be paid within 10 days REGARDLESS of investigation duration. |
| 2. "Unlicensed driving is excluded under policy." | Cite Supreme Court En Banc 98Da48963 & Commercial Code §663: The exclusion clause is void as a matter of mandatory law. |
| 3. "We need physical presence | Cite Civil Act §118 & Hague/Consular Legalized POA: Attorney- |

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|---|---|
| of heirs in Korea." | in-Fact Hasibul Munim has full statutory power to represent. |
| 4. "We cannot wire overseas without court order." | Clause 6 provides complete indemnity and discharge upon SWIFT MT103 execution to Mutual Trust Bank PLC (A/C: 1311004072276). |
| 5. "Total silence past Day 10 deadline." | Day 11 trigger: File FSS Petition + initiate KLAC asset arrest with 6.0% commercial default interest accelerating daily. |